

Brij Kishor v. Paschimanchal Vidyut Vitran Nigam Limited and others

High Court of Judicature at Allahabad · Division Bench · 4 July 2023 · 2023:AHC:131831-DB · Writ-C No. 18738 of 2023 · **Writ disposed on consent; authority to consider application under clause 6.14**

HEADNOTE

Writ for a new electricity connection, sought without awaiting a pending partition suit and opposed on outstanding plot dues under clause 4.3, disposed of on consent. The petitioner was left to move the competent authority. Any such application is to be considered and finally decided expeditiously, keeping in mind clause 6.14 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Brij Kishor petitioned for a direction to Paschimanchal Vidyut Vitran Nigam Limited to release a new electricity connection at House No. 1243, Mohalla Holiwala, Hasanpur, Amroha (J.P. Nagar), without awaiting partition Suit O.S. No. 153 of 2020 filed by his ancestors. The licensee told the Court that electricity dues stood outstanding on the plot and that clause 4.3 of the Supply Code, 2005 barred a new connection until they were cleared, while an application to the second respondent could be considered under clause 6.14.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

consideration of new-connection application keeping clause 6.14 in mind

HOLDING

On consent the writ was disposed of. The petitioner was asked to approach the competent authority with a proper application ventilating his grievance. If such an application is moved, the authority is to consider it and take a final decision expeditiously, keeping in mind clause 6.14 of the U.P. Electricity Supply Code, 2005.

¶ 4

PRINCIPLE TAGS

installment-payment-clause-6.14

The Court did not release the connection or fix instalments. Disposing of the writ on consent, it required the competent authority to consider the petitioner's application and decide it expeditiously, keeping clause 6.14 in mind, after the licensee had said outstanding plot dues would otherwise bar a new connection under clause 4.3. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.3 BARS A NEW CONNECTION UNTIL OUTSTANDING ELECTRICITY DUES ON THE PLOT ARE CLEARED.

Recorded only as the licensee's submission. The Court said 'be that as it may' and did not rule on the bar. ¶ 3-4

NOT DECIDED — WHETHER THE NEW CONNECTION MUST AWAIT THE RESULT OF PARTITION SUIT O.S. NO. 153 OF 2020.

The prayer to proceed without waiting for the suit was not decided. The petitioner was left to move the competent authority. ¶ 2-4

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO PAY THE DUES IN INSTALMENTS UNDER CLAUSE 6.14.

The authority was asked only to keep clause 6.14 in mind while deciding the application. ¶ 4

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.